

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 7/10/26      TIME: 9:00 A.M.      DEPT: E      CASE NO: FL0000644

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

---

PETITIONER:    LISA SIRABELLA

and

RESPONDENT:   BRYAN ETKIE

---

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

**RULING**

This matter is set for hearing on Mother's 5/1/2026 Request for Order ("RFO") re: child custody/visitation regarding the parties' daughter, Eliza (DOB 7/24/2021). Respondent/Father did not file a Response to the RFO. On 7/6/2026 Mother submitted a Declaration which attached Father's Soberlink testing results.

Child Custody/Visitation

Both parties were re-referred to Family Court Services ("FCS"), and both were interviewed, separately, on 7/1/2026. The Court continues to be very concerned about Bryan's Soberlink testing results. The Court has warned him about missed and/or failed test, on more than one occasion, which appears to have no affect on him. Given all the failed/missed/late tests since he started Soberlink testing, and his repeated suggestions that he is somehow being persecuted by the requirement to test, Bryan appears to be in serious denial regarding his alcohol abuse. The Court agrees that this poses an immediate and unreasonable risk for Eliza.

The Court is very familiar with this case and with the parties and their history. Having reviewed Mother's RFO, the current Orders and the current and prior FCS Report & Recommendations, the Court finds that it is in the best interests of Eliza to adopt the FCS recommendations, as modified below. Therefore, the Court orders as follows:

1. Temporarily, Eliza shall live primarily with Mother and shall be with Father during the following times:
  - Every Wednesday from 2:00 p.m. (or end of school) until 7:00 p.m.
  - The 2<sup>nd</sup>, 3<sup>rd</sup>, 4<sup>th</sup>, and 5<sup>th</sup> (if any) Sunday of the month from 10:00 a.m. to 7:00 p.m. (Eliza shall remain in Mother's care for the 1<sup>st</sup> Sunday of every month).

2. Father shall not consume *any* alcohol while Eliza is in his care.
3. Father shall continue to test with Soberlink every day he has Eliza at 8:00 a.m. and 5:00 p.m. If any of the 8:00 am tests are missed, more than 30 minutes late or positive, then that day's visit shall be cancelled, and Eliza will remain in Lisa's care.
4. All exchanges shall continue to be curbside outside of Mother's home. If this is not agreed upon, then they shall be outside of the police station in Fairfax.

The Court will prepare the order per Rule 5.125, CA Rules of Court.

*Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the hearing for oral argument **by 4:00 pm on the court day before the hearing**, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.*

*Unless otherwise ordered by the Court, persons who requested oral argument must appear for the hearing in person or remotely via Zoom, in accordance with the Court website guidelines. If appearing remotely via Zoom (video or telephone), you are responsible for ensuring you have adequate connectivity; the Court may proceed in a party's absence if technical issues arise. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person being made.*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 7/10/26      TIME: 9:00 A.M.      DEPT: E      CASE NO: FL0002687

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

---

PETITIONER:    LINDLEY PEREZ ROSS

and

RESPONDENT:    AARON HALE PHILLIPS

---

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION  
- REIMBURSEMENT

**RULING**

This matter is set for hearing on Petitioner/Mother's 5/16/2026 Request for Order ("RFO") re: Child Custody/Visitation regarding the parties' two children: Baxter (DOB 6/19/2013) and Caroline (DOB 9/16/2015), and for reimbursement for last-minute flight changes by Respondent/Father. Father did not file a Responsive Declaration to the RFO. However, both parties were interviewed together by Family Court Services ("FCS"), and FCS filed its Report & Recommendations with the Court on 7/6/2026.

Mother and the children moved to California from Tennessee six years ago; they live in Novato. Father continues to reside in Memphis, Tennessee. The parties were divorced in Tennessee, and on 1/14/2020 a Permanent Parenting Plan Order was entered in Tennessee. The Parenting Order and an Out-of-State Support Order were registered in California with this Court.

Mother requests sole legal and physical custody of the children, and that their visits with Father be supervised due to what she describes as a very serious problem with alcohol, which makes it unsafe for the children to be with him without supervision. Although Father acknowledges his struggles with alcohol as a long-standing problem with intermittent periods of sobriety, he has been unable to sustain his sobriety, which puts the children's safety at risk.

Having reviewed and considered Mother's written submission, as well as the FCS Report & Recommendations, the Court finds that it is in the best interests of Baxter and Caroline to adopt the FCS Recommendations, as modified below:

1. All current orders shall remain in effect with the following additions/modifications.